

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PKDC, LLC, *Complainant*

v.

CMA CGM S.A., *Respondent*

DOCKET NO. 24-21

Served: July 23, 2025

ORDER OF: Mary Apostolakos Hervey, *Administrative Law Judge*.

ORDER GRANTING SECOND UNOPPOSED MOTION TO AMEND SCHEDULING ORDER

On July 22, 2025, Complainant PKDC, LLC (“PKDC”) filed an unopposed motion seeking to amend the Scheduling Order by extending the current deadlines by fifteen days. (Dkt. 35.) The scheduling deadlines were previously extended: (1) by 60 days in the order dated April 23, 2024, to allow the parties time to complete review and production of the voluminous discovery propounded in this complex proceeding (Dkt. 27); and (2) by 30 days by order dated June 23, 2025, to allow the parties sufficient time to complete discovery following entry of the order dated June 9, 2025, granting in part PKDC’s motion to compel discovery. (Dkt. 34.)

In support of its request, PKDC asserts that the parties have been diligently working together to complete discovery, have made substantial progress, but that given the production of several tens of thousands of documents a modest extension is requested to allow time for sufficient review and preparation in advance of the upcoming commencement of depositions. (Dkt. 35.)

PKDC states that it conferred with CMA counsel on July 22, 2025, and that CMA does not oppose entry of an order granting the relief requested.

Based on the scope and complexity of the discovery requests compelled in the order entered June 9, 2025, and in order to ensure the parties have sufficient time for review in preparation for deposition, the undersigned finds good cause to grant a brief fifteen day extension of the deadlines in the current Scheduling Order. Both parties are directed to use their best efforts during the remaining discovery period to narrow the issues in dispute.

Good cause having been stated, it is hereby ordered that the unopposed motion be **GRANTED**. Accordingly, the parties are hereby **ORDERED** to follow this amended schedule:

August 8, 2025	Completion of productions of documents and ESI in response to initial RFPs
August 21, 2025	Disclosure of initial expert reports, if any
August 21, 2025	Last day to serve interrogatories, requests for admission, and RFPs
September 2, 2025	Complete depositions of fact witnesses
September 2, 2025	Disclosure of rebuttal expert reports, if any

September 19, 2025	Complete expert depositions
September 19, 2025	Close of discovery
October 21, 2025	Complainant's initial brief, proposed findings of fact, and appendix
November 18, 2025	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
November 28, 2025	Complainant's reply and responses to proposed findings of fact

MARY A. HERVEY -S Digitally signed by MARY A. HERVEY -S
Date: 2025.07.23 09:39:43 -04'00'

Mary Apostolakos Hervey
Administrative Law Judge